Dhyan Singh Bangari vs State (Gnct Of Delhi) on 25 July, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

% Date of Decision:

\+ BAIL APPLN. 643/2025 & CRL.M.A. 4621/2025

DHYAN SINGH BANGARI

Through: Mr. Vikas Sharma, Advoc
(through videoconferenc
Tripti Choudhary, Advoc

versus

STATE (GNCT OF DELHI)

Through: Mr. Amit Ahlawat, APP f
with SI Ganga Pal, PS E
Dr. Alok and Mr. Siddha
Advocates for Complaina

CORAM: JUSTICE GIRISH KATHPALIA

J U D G M E N T (ORAL)

1. The accused/applicant seeks anticipatory bail in case FIR No. 57/2023 of PS EOW for offences under Section 409/420/120B IPC. Status Report on behalf of the State was filed. I have heard learned counsel for the accused/applicant and learned Additional Public Prosecutor (APP) for State as well as learned counsel for the allegedly duped investors.

2. Learned counsel for the accused/applicant submits that even according to the Status Report, the accused/applicant is rather one of the BAIL APPLN. 643/2025 Page 1 of 4 pages GIRISH KATHPALIA KATHPALIA victims of the alleged fraud played by the main accused persons. Further, it is submitted by learned counsel for the accused/applicant that on principles of parity also, the accused/applicant is entitled to anticipatory bail, because the only evidence against the accused/applicant is in the form of a statement of the main accused persons in police custody.

3. Learned APP and learned counsel for the allegedly duped investors submit that the main accused persons, who are directors of two companies had fled the country and were subsequently arrested and even thereafter they continued to allure more investors. However, learned APP and learned counsel for the investors do not dispute that role of the accused/applicant is completely different, and persons with roles similar to the accused/applicant have already been granted bail or anticipatory bail by this Court and the Court of Sessions.

4. Briefly stated, the circumstances culled out of the Status Report are as follows. A joint complaint was filed by about seventy individuals, alleging that the companies namely M/s Axis E-Corp Solutions Pvt. Ltd. and M/s Vedic Ayurcure Health and Retail Pvt. Ltd. as well as their directors

induced innocent individuals for opening grocery stores in the name and style E- Store India, assuring that the said companies would supply grocery material and promised lucrative returns/commissions. It was also represented to the complainants that the said two companies were also involved in the business of medicines. Both the companies had the same individuals as their directors. But after taking investments, those companies did not fulfil their BAIL APPLN. 643/2025 Page 2 of 4 pages GIRISH KATHPALIA KATHPALIA promises and rather fled away after closing their business. In the course of investigation, 493 complaints from different parts of country were received on the same lines. Subsequently, one of the directors namely Mr. Shamshad Ahmad was arrested and interrogated, after which further investigation started and is continuing.

5. From investigation records, it appears that there are two categories of accused persons in this case, namely the directors of those two companies and agents of those two companies. It appears that the agents also invested money in the said business but could not make any profit as assured to them. It is for this reason that learned counsel for the accused/applicant contends that the accused/applicant himself is a victim.

6. So far as directors of those companies are concerned, bail application of one of them, namely Mr. Shamshad Ahmad is listed today itself, but at the time of mentioning, the matter was requested to be adjourned by his counsel. In any case, it would be appropriate to keep in notice that case of Mr. Shamshad Ahmad, being a director of those companies stands on different footing from the case of the present accused/applicant.

7. According to the investigation, the accused/applicant is joining investigation and he himself had invested Rs. 1.28 crores in the business but was able to retrieve only Rs. 1.33 crores and could hardly save his invested money, losing on interest.

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8. As per the Status Report, few other agents, namely Zafar Maqsood Khan, Ashfaq Ali, Gopal Singh Rawat, Sarfaraz, Rohit Jain and Sanjay Kumar Singh have also already been granted either bail or anticipatory bail. That being so, on parity with those agents, the accused/applicant also would be entitled to the relief sought by him.

9. Learned counsel for accused/applicant, in all fairness assures that the accused/applicant shall join investigation as and when directed in writing by the Investigating Officer and shall not leave the country without permission of the concerned Magistrate.

10. In view of above discussion, the application is allowed and it is directed that in the event of his arrest, the accused/applicant shall be immediately released on bail subject to his furnishing a personal bond in the sum of Rs. 10,000/- with one surety in the like amount to the satisfaction of the Investigating Officer/SHO concerned. Pending application also stands disposed of.

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KATHPALIA Date: 2

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JULY 25, 2025/ DR

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